



CHAPTER xvii.

An Act to confer further powers upon the Gas Light and Coke Company. A.D. 1917.
[10th July 1917.]

WHEREAS the Gas Light and Coke Company (hereinafter referred to as "the Company") were originally incorporated by Royal Charter in the year one thousand eight hundred and twelve and received further powers under various Acts of Parliament being ultimately incorporated in perpetuity by the Act 59 George III. cap. 20 (Local):

59 Geo. 3.
c. 20.

And whereas by the Gas Light and Coke Company's Act 1868 all the prior Acts of the Company were repealed and the Company were continued and the provisions of all such prior Acts were consolidated and amended:

31 & 32
Vict. c. cvi.

And whereas by virtue of the said Gas Light and Coke Company's Act 1868 and of subsequent Acts the Company are empowered to manufacture and supply gas within a large part of the county of London and parts of the counties of Middlesex and Essex:

And whereas by the Gas Light and Coke Company's Act 1873 the Company were authorised to apply for the purposes of that Act including the purchase maintenance and use of collier ships lighters and vessels any sum or sums not exceeding in the whole one hundred and fifty thousand pounds:

36 & 37
Vict. c. cxvi.

And whereas since the passing of the last-mentioned Act the undertakings of several other companies have been amalgamated with the undertaking of the Company the limits of the Company for the supply of gas have been greatly extended and the consumption of gas within those limits has increased and is increasing:

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— And whereas it is expedient that the powers contained in this Act with respect to the provision purchase maintenance and use of ships lighters and vessels and the application of funds for those purposes should be conferred upon the Company :

And whereas it is expedient that the ordinary meetings of the Company should be held annually instead of half-yearly and that the provisions contained in this Act with respect to the declaration of half-yearly dividends should be made :

3 Edw. 7.
c. xli.

And whereas by section 11 of the Gas Light and Coke Company's Act 1903 the Company are restricted from using their reserve fund for the purpose of distributing a dividend exceeding four per centum per annum upon their ordinary stock and it is expedient that the said restriction should be removed :

And whereas it is expedient that the provisions contained in this Act with respect to the appointment and remuneration of a managing director or managing directors of the Company should be made :

9 Edw. 7.
c. lxxxvii.

And whereas by section 48 of the Gas Light and Coke Company's Act 1909 and regulations set out in the Fourth Schedule to that Act provisions were made for the appointment by employees of the Company holding stock of the Company or having certain moneys left in the hands of the Company of nominees to transfer such stock or to receive such moneys and it is expedient that the further provisions in this Act contained with reference to the appointment and powers of such nominees should be made and it is also expedient that the provisions in this Act contained with respect to the transfer into the names of employees of the Company of stock of the Company in certain cases should also be made :

And whereas it is expedient that the consequential and other provisions contained in this Act should be made :

And whereas the purposes of this Act cannot be effected without the authority of Parliament :

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows (that is to say) :—

Short title.

1. This Act may be cited as the Gas Light and Coke Company's Act 1917.

2. In this Act—

The expression “the Company” means the Gas Light and Coke Company; A.D. 1917.

The expression “the Act of 1873” means the Gas Light and Coke Company's Act 1873; Interpretation.

The expression “the Act of 1876” means the Gas Light and Coke Company Act 1876;

The expression “the Act of 1903” means the Gas Light and Coke Company's Act 1903;

The expression “the Act of 1909” means the Gas Light and Coke Company's Act 1909.

3.—(1) The Company may provide purchase maintain and use such ships lighters and vessels as they may require or deem necessary or expedient in connexion with or for the purposes of their undertaking and may apply for the purposes aforesaid any moneys raised or for the time being authorised by any Act of Parliament to be raised by them and not required for other purposes of their undertaking. As to provision of ships &c.

(2) Sections 6 (Separate account to be kept and audited) and 7 (Limited dividend) of the Act of 1873 are hereby repealed.

4.—(1) As from the passing of this Act the ordinary meetings of the Company shall be held annually instead of half-yearly and shall in every year be held in the month of February or in such other month as shall be determined by a resolution of shareholders at a general meeting and every general meeting of the Company shall be held in the county of London. Annual ordinary meetings and half-yearly dividends.

(2) The directors may if it appears to them that the profits of the Company are sufficient declare and pay in respect of any half year ending on the thirtieth day of June dividends on the several classes of stock or shares of the Company out of the profits of the Company without the sanction or direction of a general meeting but no such dividend on the ordinary stock or the three-and-a-half per centum maximum stock of the Company shall exceed the rate of dividend on those stocks respectively in respect of that half year as

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A.D. 1917. — determined pursuant to section 34 (Reduction of standard price and amendment of enactments relating to sliding scale) of the Act of 1909.

(3) Any dividend declared at an annual ordinary meeting of the Company shall be deemed to be a half-yearly dividend in respect of the half year ending next before the date of such meeting.

(4) It shall be lawful for the Company to close the register of transfers for a period not exceeding one month immediately preceding the day appointed for holding each annual ordinary meeting and also for a period not exceeding one month commencing on any day in the first week of July in any year and the dividends of the Company shall be made out and payable to the several persons who shall stand as holders of stock or shares in the books of the Company immediately before the closing of the register.

(5) Section 29 (Ordinary meetings) of the scheme for the amalgamation of the London Gas Light Company with the Gas Light and Coke Company confirmed by Order in Council on the twenty-second day of May one thousand eight hundred and eighty-three is hereby repealed.

Further provisions as to half-yearly dividends.

5. Section 34 (Reduction of standard price and amendment of enactments relating to sliding scale) of the Act of 1909 (except the last paragraph of that section) shall apply and have effect to and in respect of any half-yearly dividend on the ordinary stock or the three-and-a-half per centum maximum stock of the Company declared by the directors under the provisions of the section of this Act of which the marginal note is "Annual ordinary meetings and half-yearly dividends" in the same manner as if such dividend were a dividend made subject to the provisions of the Companies Clauses Consolidation Act 1845 with respect to the making of dividends.

Use of reserve fund.

6. Section 11 (Use of reserve fund) of the Act of 1903 is hereby repealed and the reserve fund of the Company shall be applicable to the payment of dividend in accordance with the provisions of section 23 (Power to create a reserve fund out of dividends in excess of the standard rate of dividend and application thereof) of the Act of 1876 as amended by

section 35 (Amending sections 21 22 and 23 of Gas Light and Coke Company Act 1876) of the Act of 1909. A.D. 1917.

7.—(1) The directors of the Company may appoint one or more of their body to be managing director or managing directors of the Company either for a fixed term or without any limitation as to time and may remove or dismiss him or them from office and appoint another or others in his or their place or places. Appoint-
ment of
managing
director.

(2) A managing director shall not while holding that office be subject to retirement by rotation and shall not be taken into account in determining the rotation of retirement of directors but if he ceases to hold the office of director from any other cause he shall ipso facto immediately cease to be a managing director.

(3) The remuneration of a managing director shall from time to time be fixed by the directors and may be by way of salary or commission or participation in profits or by any or all of those modes.

(4) The directors may entrust to and confer upon any managing director such of the powers exercisable by the directors and subject to such conditions as they may think fit and may from time to time revoke withdraw alter or vary all or some of such powers.

8.—(1) A nomination made in pursuance of section 48 (Persons in employ of Gas Light Company may nominate others to transfer stock &c. held by such persons) of the Act of 1909 and the regulations set forth in the Fourth Schedule to that Act by any person in the employment of the Company shall not be revoked or avoided by the marriage of such person subsequently to the making by him of such nomination and such nomination shall notwithstanding such marriage but in other respects subject to the provisions of the said section 48 and the said regulations remain of full force and effect. Further pro-
visions as to
nominations
by employees
under section
48 of Act of
1909 and
transfers of
stock by
nominees.

(2) Where stock of the Company has been transferred to a nominee of a deceased employee pursuant to a nomination made under the provisions of the said section 48 and of the said regulations it shall be competent to such nominee provided that he has attained the age of sixteen years to execute a

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A.D. 1917. transfer of such stock notwithstanding that he has not attained
--- the age of twenty-one years in the same manner to the same
extent and with the same consequences as if such nominee
were of the age of twenty-one years or upwards.

(3) The powers conferred by the said section 48 shall
extend to authorise any person entitled to make a nomination
under the provisions of that section and having deposited any
money with the Company to nominate any person to receive
any such money at the death of the person so nominating and
those provisions and the said regulations as amended by this
section shall extend and apply accordingly.

As to regis-
tration of
stock in
names of
employees in
certain
cases.

9. Where a transfer of stock of the Company by the
holder thereof to an employee of the Company entitled to
make a nomination under the provisions of section 48 (Persons
in employ of Gas Light Company may nominate others to
transfer stock &c. held by such persons) of the Act of 1909
has been duly executed by the transferor (being stock repre-
senting money left by such employee in the hands of the
Company for investment) the Company may if having regard
to the circumstances of the case they deem it advisable so to
do register such transfer notwithstanding that it be not executed
by the transferee and upon such registration the transfer shall
constitute a legal conveyance of the stock to the transferee and
the transferee shall be registered in the books of the Company
as the holder of such stock.

Costs of
Act.

10. All costs charges and expenses of and incidental to
the preparing for obtaining and passing of this Act or other-
wise in relation thereto shall be paid by the Company out of
their revenue.

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